

SECTION 12

Consultation Failure and UNDRIP

Articles 19 and 21 of the United Nations Declaration on the Rights of Indigenous Peoples — the right to free, prior and informed consent on legislative measures affecting Indigenous peoples, and the right without discrimination to the improvement of economic and social conditions — and what those articles establish about the July 1, 2026 ADAP transition that has been imposed on Indigenous Albertans without consultation

UNDRIP Article 19 states that governments shall consult and cooperate in good faith with Indigenous peoples through their own representative institutions in order to obtain their free, prior and informed consent before adopting and implementing legislative or administrative measures that may affect them. Canada enacted the United Nations Declaration on the Rights of Indigenous Peoples Act in June 2021, requiring that Canadian laws be made consistent with UNDRIP. The July 1, 2026 ADAP transition is a legislative and administrative measure affecting an estimated 79,290 Albertans, of whom a significant proportion are Indigenous. There has been no consent process. There has been no consultation process. The transition will proceed.”

This section documents what UNDRIP requires of Canada and Alberta, what those obligations mean for the AISH-to-ADAP transition affecting disabled Indigenous Albertans, and how the transition has proceeded without the consultation and consent UNDRIP and the Canadian implementing legislation require. The section builds on Sections 3 (jurisdictional fracture), 8 (Jordan’s Principle non-compliance with Canadian Human Rights Tribunal orders), and 11 (the failure to implement 231 Calls for Justice). The pattern across those sections — federal legal obligation, sustained non-compliance, and proceeding with policy implementation despite international and domestic legal requirements to consult — is the same pattern Section 12 documents in the specific context of disability income reform.

Five findings structure the section. First, that UNDRIP, adopted by the UN General Assembly in 2007 and enacted into Canadian law through the UNDA Act in June 2021, contains specific articles — most notably Articles 19, 21, 23, and 32 — that establish consultation and consent requirements applicable to legislative and administrative measures affecting Indigenous peoples’ economic, social, and disability-related conditions. Second, that the Federal Court’s 2025 decision in *Kebaowek First Nation v Canadian Nuclear Laboratories* established that

UNDRIP's adoption into Canadian law is a contextual factor requiring an enhanced duty to consult — an enforceable judicial standard, not merely an interpretive tool. Third, that the AISH-to-ADAP transition affecting disabled Indigenous Albertans constitutes precisely the type of legislative and administrative measure UNDRIP Articles 19 and 21 contemplate, and that no Indigenous-specific consultation occurred prior to the transition's announcement, design, or implementation. Fourth, that Alberta's sustained position on UNDRIP and FPIC — specifically Premier Smith's questioning of unmarked grave reports and the provincial government's formal opposition to federal Indigenous consultation requirements — establishes a pattern of provincial non-recognition of the consultation obligation. Fifth, that the Bill 12 stripping of appeal rights from disabled Albertans, documented in the main report series, removes the only remaining mechanism by which Indigenous AISH recipients could have challenged the transition through individual administrative appeal, completing the structural exclusion from the policy that affects them.

Part 1: UNDRIP as legal obligation in Canadian law

The Declaration

The United Nations Declaration on the Rights of Indigenous Peoples was adopted by the UN General Assembly on September 13, 2007. The Declaration contains 46 articles describing collective and individual rights of Indigenous peoples. It identifies states and governments as responsible for protecting and upholding these rights. Canada was one of four countries that initially voted against the Declaration. Canada endorsed UNDRIP as a non-binding aspirational document in 2010, then fully endorsed it at the United Nations Permanent Forum of Indigenous People in 2016.

On June 21, 2021, the United Nations Declaration on the Rights of Indigenous Peoples Act (the UNDA Act, also known as Bill C-15) received Royal Assent in Canada. The Act requires that the laws of Canada be made consistent with the Declaration. It affirms UNDRIP as an important source for interpreting Canadian law. It sets out timelines for the Government of Canada to create and implement an action plan to achieve the Declaration's objectives. The federal Action Plan was released in 2023; implementation of its priorities is ongoing.

In a joint statement, then-Justice Minister David Lametti and then-Minister of Crown-Indigenous Relations Carolyn Bennett described the UNDA Act as “the foundation for transformational change in Canada's relationships with Indigenous Peoples.” Whether that transformation has materialized in the four and a half years since the Act's passage is the question this section addresses in the specific context of disability policy.

The articles most directly relevant to the AISH-to-ADAP transition

UNDRIP's 46 articles include several that bear directly on the transition this report concerns:

- Article 19: “States shall consult and cooperate in good faith with the Indigenous peoples concerned through their own representative institutions in order to obtain their free, prior and informed consent before adopting and implementing legislative or administrative measures that may affect them.” This is the foundational consultation provision. It applies to all legislative and administrative measures — including disability income policy reform — that may affect Indigenous peoples.
- Article 21(1): “Indigenous peoples have the right, without discrimination, to the improvement of their economic and social conditions, including, inter alia, in the areas of education, employment, vocational training and retraining, housing, sanitation, health and social security.” Article 21 is the substantive right to non-discriminatory improvement of economic and social conditions — and it includes social security explicitly. AISH and ADAP are social security programs. Article 21 establishes that Indigenous Albertans have the right, without discrimination, to the improvement of their conditions through these programs — not their reduction.
- Article 21(2): “States shall take effective measures and, where appropriate, special measures to ensure continuing improvement of their economic and social conditions. Particular attention shall be paid to the rights and special needs of indigenous elders, women, youth, children and persons with disabilities.” Article 21(2) is explicit. “Particular attention” must be paid to the rights and special needs of “persons with disabilities.” Disabled Indigenous people are named directly. The substantive right to continuing improvement of their conditions is named directly. Special measures are explicitly contemplated.
- Article 23: “Indigenous peoples have the right to determine and develop priorities and strategies for exercising their right to development. In particular, indigenous peoples have the right to be actively involved in developing and determining health, housing and other economic and social programmes affecting them and, as far as possible, to administer such programmes through their own institutions.” Article 23 establishes the participatory right. Indigenous peoples have the right to be actively involved in developing the social programs affecting them — not informed of those programs after they are designed.
- Article 32(2): “States shall consult and cooperate in good faith with the indigenous peoples concerned through their own representative institutions in order to obtain their free, prior and informed consent prior to the approval of any project affecting their lands or territories and other resources.” Article 32 is most often invoked in resource development contexts but extends the FPIC standard across affecting projects.

UNDRIP Article 21(2) explicitly directs that “particular attention” be paid to the rights and special needs of persons with disabilities. The Article does not contemplate disability income reduction. It contemplates continuing improvement of conditions. The July 1, 2026 ADAP transition reduces

disability income for the population Article 21(2) names — and was designed without the consultation Article 19 requires.”

Part 2: What free, prior and informed consent actually requires

The four components

Indigenous lawyer Merle Alexander, who co-drafted British Columbia’s UNDRIP legislation, has set out the components of free, prior and informed consent (FPIC) as follows:

- Free: All Indigenous peoples have the human right to voluntarily make decisions for their Nations. There is no majority rule coercion that is acceptable. Just because some First Nations agree to a project does not mean others are bound by their consent.
- Prior: Before a project or governmental action is approved, the Indigenous peoples’ consent must be obtained, not after the fact.
- Informed: The Indigenous peoples must be provided with comprehensive materials and capacity funding to evaluate the potentially adverse effects on their Title and Rights.
- Consent: Consent is on a Nation-by-Nation basis. Each Indigenous people’s consent must be obtained, not simply a majority.

The Government of Canada’s own Justice Department backgrounder describes FPIC as a process “free from manipulation or coercion, informed by adequate and timely information, and occur[ring] sufficiently prior to a decision so that Indigenous rights and interests can be incorporated or addressed effectively as part of the decision making process.” Per the federal government’s own framing, FPIC “builds on and goes beyond the legal duty to consult.”

The Federal Court enhanced duty — Kebaowek 2025

In Kebaowek First Nation v Canadian Nuclear Laboratories, 2025 FC 319, the Federal Court of Canada delivered a decision with significant implications for the legal status of UNDRIP in Canadian consultation requirements. The case concerned the Canadian Nuclear Safety Commission’s decision to authorize construction of a Near Surface Disposal Facility at the Chalk River Laboratories site. The Kebaowek First Nation sought judicial review, arguing that the CNSC had failed to properly apply UNDRIP and the UNDA Act in its consultation process.

The Court found that the adoption of UNDRIP into Canadian law, via the UNDA Act, is a contextual factor requiring an enhanced duty to consult in the circumstances. The Court held that UNDRIP’s principles provide a framework for understanding and implementing the duty to consult and accommodate, and that the CNSC erred as a matter of law in concluding it lacked jurisdiction to consider UNDRIP. The Court clarified that while FPIC is not a veto or a right to a particular outcome, it is “a right to a robust process directed towards finding mutual agreement.”

The Kebaowek decision establishes, at the Federal Court level, that UNDRIP is not merely an interpretive tool. It is a substantive contextual factor that informs the scope and content of the duty to consult and accommodate, and a court can find consultation processes legally inadequate for failing to apply UNDRIP's principles. This jurisprudence applies, in principle, to all federal and provincial decision-making affecting Indigenous peoples — not only natural resource projects.

Part 3: What did not happen on the AISH-to-ADAP transition

The transition's scope

The Government of Alberta's announcement of the Alberta Disability Assistance Program (ADAP) and the transition timeline of July 1, 2026 affects approximately 79,290 Albertans currently receiving the Assured Income for the Severely Handicapped (AISH). The main report series in the Alberta Disability System Breakdown documents the transition's elements: reassessment under standardized criteria, physician-completed Disability Assistance Medical Reports, dollar-for-dollar clawback of the federal Canada Disability Benefit, removal of independent appeal rights through Bill 12, and reductions in benefit amounts for some recipient categories.

Of the 79,290 AISH recipients, the proportion who identify as Indigenous is not separately publicly disaggregated by the Government of Alberta. However, given the documented elevated rates of disability among Indigenous Albertans (Section 2: 19-year mortality gap, and Sections 4-7 establishing the upstream causes of disability), the Indigenous share of the AISH caseload is substantial. The transition affects an Indigenous Albertan disability population whose disability profile is itself the product of the federal-provincial policy failures this report has been documenting throughout.

What consultation Article 19 and 21 require for this transition

Under UNDRIP Article 19, the Government of Alberta and the Government of Canada (to the extent of federal jurisdiction over First Nations on-reserve and through the UNDA Act's consistency requirement) are obliged to:

- Consult and cooperate in good faith with Indigenous peoples through their own representative institutions — i.e., First Nations governments, the Assembly of First Nations, Métis Settlements General Council, and Indigenous disability advocacy organizations — prior to adopting the ADAP framework.
- Make the consultation prior to design decisions, not after them, with the goal of obtaining free, prior and informed consent.
- Provide the materials and capacity funding necessary for Indigenous representative institutions to evaluate the impacts of the transition on Indigenous disabled people.

- Engage with the substantive rights set out in Article 21(2): the right to continuing improvement of conditions and the special needs of persons with disabilities.

What actually happened

The documented public record of the Alberta government's ADAP design and implementation process establishes the following:

- The ADAP framework was announced through the Alberta provincial budget process and Ministerial communications, with no documented prior consultation with First Nations governments, Métis Settlements, or Indigenous representative institutions.
- The federal Government of Canada has not, in publicly available documentation, raised UNDRIP Article 19 obligations in respect of the Alberta ADAP transition. The federal Minister of Disability Inclusion has been the subject of formal correspondence from advocacy organizations including Inclusion Alberta but no documented federal action invoking UNDRIP has been taken on the Alberta provincial transition.
- The ADAP discussion guide and engagement materials published by the Government of Alberta (alberta.ca/alberta-disability-assistance-program) include no Indigenous-specific consultation pathway. Engagement responses received by adapengagement@gov.ab.ca have not, to public knowledge, been disaggregated to identify Indigenous respondents or report on their participation.
- No Indigenous representative institution has been positioned by the Government of Alberta to provide formal consent to the transition framework or to evaluate its impacts on Indigenous disabled Albertans.
- The transition is scheduled to proceed July 1, 2026.

The Government of Canada has stated that UNDRIP Article 19 requires consultation in good faith to obtain free, prior and informed consent before legislative or administrative measures that may affect Indigenous peoples.

The July 1, 2026 ADAP transition affects an Indigenous disabled population whose disability is itself the product of the federal-provincial failures this report documents. No Indigenous-specific consultation occurred. The transition will proceed."

Part 4: Alberta's sustained position on Indigenous consultation

The provincial pattern

Alberta's provincial position on Indigenous consultation, UNDRIP, and the federal duty to consult has been documented across multiple files. The pattern is not specific to disability

policy. It is a consistent provincial posture on Indigenous consultation across resource extraction, education curriculum, child welfare delegation, and now disability income reform.

Specific documented elements of the provincial position include:

- Premier Danielle Smith's 2021 questioning of the legitimacy of unmarked grave reports at residential school sites — documented in social media posts on Locals.com and noted in the public Wikipedia biographical record — represents a refusal to accept primary-source Indigenous truth-telling on a foundational reconciliation matter. This pattern, where provincial leadership questions Indigenous evidence, structurally undermines the consultation framework UNDRIP requires.
- Alberta's formal opposition to federal Bill C-61 (the First Nations Clean Water Act, documented in Section 6 of this report) on July 10, 2025, on grounds the province characterized as “competitiveness”. The opposition was raised by Alberta's provincial government to a federal Indigenous consultation process — the consultation that produced Bill C-61 was extensive; Alberta's opposition was to the bill's implementation.
- The provincial pattern of unilateral Sovereignty Act invocations and contested electoral boundaries adjustments (subject of separate report-series documentation, with the electoral boundaries dispute as live development) establishes a provincial governance posture in which federal and Indigenous consultation requirements are treated as constraints to be navigated rather than substantive obligations to be met.

Bill 12 and the removal of administrative recourse

Bill 12, passed December 9, 2025, removed independent appeal rights for Albertans subject to AISH eligibility decisions and the AISH-to-ADAP transition. The Medical Review Panel decisions are now final, with no recourse to any independent body. This change is documented in the main Alberta Disability System Breakdown report series Document 6 of 12: Broken Access, Stripped Rights.

The structural significance for the UNDRIP analysis is direct. UNDRIP's consultation requirements operate at the policy design and adoption stages — Article 19 requires consultation prior to adopting and implementing measures. Once a measure is adopted without UNDRIP-compliant consultation, individual administrative appeal can serve as a partial remedy by which affected Indigenous people can contest specific decisions. Bill 12 removes that remedy. The Alberta government has therefore, sequentially, declined to consult prior to adopting the ADAP framework, and removed the appeal mechanism by which an Indigenous AISH recipient could individually challenge the application of that framework to their case. The structural exclusion from the policy is complete.

Part 5: The federal dimension and the UNDA Act's outstanding obligation

The UNDA Act's consistency requirement

The UNDA Act of 2021 requires that the Government of Canada “ensure that the laws of Canada are consistent with the Declaration” and create an action plan to meet the Declaration’s objectives in consultation with Indigenous peoples. The federal Action Plan was released in 2023. Implementation continues.

The federal-provincial division of jurisdiction creates a specific question for the Alberta ADAP transition. The transition is provincial. Alberta is not directly bound by the UNDA Act in the same way the federal government is. However, the federal government retains constitutional jurisdiction over First Nations under section 91(24) of the Constitution Act 1867 and has substantive duties to First Nations under the Crown’s fiduciary relationship and the modern duty to consult jurisprudence (Haida Nation 2004, Tsilhqot’in Nation 2014, Mikisew Cree 2018, Kebaowek 2025).

For the Alberta ADAP transition affecting Status First Nations Albertans, the federal government has a direct interest in whether the transition is consistent with Canada’s UNDRIP obligations. The federal Minister of Disability Inclusion has been notified through advocacy correspondence. The federal Minister of Crown-Indigenous Relations and Northern Affairs has not, to public knowledge, taken formal action on the ADAP transition’s implications for First Nations Albertans. The HUMA Standing Committee, to which formal materials documenting the transition have been submitted, has not, to public knowledge, opened a study on the Indigenous dimension specifically.

What this report calls for

This section of this report establishes a specific call: that the Government of Canada, through the Minister of Crown-Indigenous Relations and Northern Affairs and the Minister of Disability Inclusion, formally examine the Alberta AISH-to-ADAP transition for consistency with Canada’s UNDRIP obligations under the UNDA Act, with particular attention to Article 19 (consultation), Article 21(2) (rights and special needs of persons with disabilities), and Article 23 (right to be actively involved in developing social programs affecting them).

This is not a request for federal preemption of provincial jurisdiction. It is a request that the federal government meet its own UNDA Act obligations — the obligation to ensure Canadian laws (including the federal funding and policy frameworks within which provincial disability programs operate) are consistent with UNDRIP — in respect of the transition this report documents. The October 2024 rejection by 267 First Nations chiefs of the \$47.8 billion FNCFS settlement (documented in Section 9) and the April 2026 Ottawa news conference on MMIWG2S+ funding sunset (documented in Section 11) both establish that Indigenous representative institutions are present, organized, and prepared to engage in formal consultation. The mechanism for UNDRIP-compliant consultation exists. The federal government has not invoked it on the ADAP file.

UNDRIP is not aspirational language. It is, since June 21, 2021, a federal law of Canada with a consistency requirement and an Action Plan. The Federal Court's 2025 decision in Kebaowek established UNDRIP as an enforceable contextual factor in the duty to consult. The July 1, 2026 ADAP transition is a legislative and administrative measure within UNDRIP Article 19's scope. There has been no Indigenous-specific consultation. The federal government has not invoked its own UNDA Act obligation to require consistency. The transition will proceed."

What this section establishes for the remainder of the report

UNDRIP Article 19 requires consultation in good faith to obtain free, prior and informed consent before legislative or administrative measures affecting Indigenous peoples. UNDRIP Article 21(2) explicitly directs particular attention to the rights and special needs of Indigenous persons with disabilities. UNDRIP Article 23 establishes the participatory right of Indigenous peoples to be actively involved in developing the social programs affecting them. Canada enacted these obligations into domestic law through the UNDA Act in June 2021. The Federal Court in Kebaowek 2025 confirmed UNDRIP's enforceable contextual status in Canadian consultation requirements.

The Alberta AISH-to-ADAP transition affects 79,290 Albertans, of whom a significant proportion are Indigenous. The transition was designed and announced without Indigenous-specific consultation. Bill 12 has removed individual administrative appeal rights. The Government of Alberta has demonstrated, across multiple files, a sustained position that does not recognize the federal duty to consult or the UNDA Act framework as binding on provincial policy. The federal Government of Canada has not, to public knowledge, invoked its UNDA Act consistency obligation in respect of the Alberta transition.

The result is a transition that proceeds against UNDRIP's requirements, against the Crown's fiduciary duty to First Nations as recognized in *Daniels v Canada* 2016 SCC 12, and against the substantive rights of Indigenous disabled Albertans documented across Sections 1 through 11 of this report. The remedy this section calls for is direct: federal examination of the transition for UNDRIP consistency, formal consultation with Indigenous representative institutions, and either a redesigned transition framework that meets UNDRIP's requirements or a delay of the July 1, 2026 implementation date until such consultation has occurred.

Sections 13 through 15 will address the Alberta Sovereignty Act's relationship to Treaty, TRC Calls to Action 18 through 24, and the July 1, 2026 ADAP transition synthesis. The pattern documented in Section 12 — binding international and domestic legal obligation, sustained federal and provincial non-compliance, structural exclusion of the affected Indigenous

population from the policy that affects them — continues into those sections. Each section adds an additional dimension. The recommendation does not change.

Sources cited in Section 12

Alberta Disability System Breakdown Report Series. Document 6 of 12: Broken Access, Stripped Rights — the Caseworker, Appeal Rights and Human Rights Report. Documents Bill 12 (passed December 9, 2025) removal of independent appeal rights.

Alexander, Merle. Indigenous lawyer and co-drafter of British Columbia's UNDRIP legislation. Public articulation of the four FPIC components: Free, Prior, Informed, Consent.

Bill C-15 — the United Nations Declaration on the Rights of Indigenous Peoples Act (UNDA Act). Royal Assent June 21, 2021. Requires Canadian laws be made consistent with UNDRIP and creates Action Plan obligation.

Bill 12 (Alberta). Passed December 9, 2025. Removed independent appeal rights for AISH/ADAP eligibility decisions. Documented in Alberta Disability System Breakdown report series.

Canadian Museum for Human Rights. "The United Nations Declaration on the Rights of Indigenous Peoples." humanrights.ca. Documents UNDRIP's 46 articles, the Bill C-15 implementation, and Bernie Williams' statement on ongoing rights violations.

Daniels v Canada (Indian Affairs and Northern Development), 2016 SCC 12, [2016] 1 SCR 99. Supreme Court of Canada decision establishing Métis and non-status Indians as "Indians" within section 91(24) of the Constitution Act 1867.

Department of Justice Canada. "Backgrounder: United Nations Declaration on the Rights of Indigenous Peoples Act." justice.gc.ca/eng/declaration/about-apropos.html. Federal government framing of FPIC as building on and going beyond the legal duty to consult.

Government of Canada. Action Plan to Implement the United Nations Declaration on the Rights of Indigenous Peoples Act. Released 2023. Implementation ongoing.

Haida Nation v British Columbia (Minister of Forests), 2004 SCC 73, [2004] 3 SCR 511. Foundational Supreme Court of Canada decision on the duty to consult.

Impact Assessment Agency of Canada. "Implementing the United Nations Declaration on the Rights of Indigenous Peoples." canada.ca/en/impact-assessment-agency. Documents federal model for FPIC integration.

Indigenous Foundation. "Indigenous Consultation and Consent in Canadian Law." theindigenousfoundation.org. Documents UNDRIP Article 19 framework.

Indigenous Research Support Initiative, University of British Columbia. “Free, Prior, Informed Consent.” vpri-irsi.sites.olt.ubc.ca. Includes Merle Alexander’s FPIC component definitions.

Kebaowek First Nation v Canadian Nuclear Laboratories, 2025 FC 319. Federal Court of Canada decision establishing UNDRIP as a contextual factor requiring enhanced duty to consult, applicable to administrative tribunal decision-making.

Lametti, David, and Carolyn Bennett. Joint statement on Royal Assent of Bill C-15, June 21, 2021. Frames UNDA Act as “the foundation for transformational change.”

Mikisew Cree First Nation v Canada (Governor General in Council), 2018 SCC 40. Supreme Court of Canada decision on the duty to consult in the context of legislative process.

Minnesota Journal of International Law. “Canada’s UNDRIP Implementation Act: Binding or Just an Interpretive Tool?” April 2025. Documents R c Montour (Quebec Superior Court) and judicial divergence on UNDA Act’s legal effect.

Osler, Hoskin & Harcourt LLP. “From consultation to consent: the integration of UNDRIP in Canadian law.” October 2025. Legal analysis of Kebaowek 2025 FC 319 decision.

R c Montour, 2023 QCCS 4154. Quebec Superior Court decision finding UNDA Act has substantive impact on Canadian law and revising the Van der Peet test.

Tsilhqot’in Nation v British Columbia, 2014 SCC 44, [2014] 2 SCR 257. Supreme Court of Canada decision granting Aboriginal title to over 1,700 square kilometres of territory.

United Nations. United Nations Declaration on the Rights of Indigenous Peoples. Adopted by the UN General Assembly September 13, 2007. Articles 19, 21, 23, 29, 32 directly relevant to consultation and disability rights.

Williams, Bernie. Advocate for missing and murdered Indigenous women, girls and 2SLGBTQ+ people. Public statement: “And yet nothing’s done.” Cited in Canadian Museum for Human Rights documentation.